MUSK'S X SUES CALIFORNIA OVER NEW CONTENT MODERATION LAW - Firm challenges constitutionality, saying legislation violates the First Amendment

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ElonMusk's socialmedia platformformerly known as Twitter has sued the state of California over a law requiring social media companies to publish their policies for removing offendingmaterial such as hate speech, misinformation and harassment. The first-of-its-kind legislationwas signedintolawa year ago by California Gov. Gavin Newsom. In a lawsuit filedFriday against stateAttorney General Robert Bonta, X Corp. challenged theconstitutionalityandlegal validity of the law, saying it violates the First Amendment.

Assembly Bill 587 requires social media platforms to post their content moderation policies - which they alreadydo- and twice a year submit a report to the state on how they address hate speech, racism, misinformation, foreign political interference andother issues.

Thelawcompelscompanies to engage in speech against their will, impermissibly interfereswith the constitutionally-protected editorial judgments of companies such as X Corp. and has pressures companies to remove or demonetize constitutionally-protected speech, says the lawsuit, filed in the Eastern District Court ofCalifornia.

Since taking overTwitter in October, Musk has upended the platform's content moderation system, laying off workers responsible forweeding out problematic content and reinstating accounts banned for engaging in hate speech, promoting Nazi and white nationalist material and harassing users.

He also disbanded a key advisory group, the Trust andSafetyCouncil, madeup of dozens of independent civil, human rights and other organizations. The company formedthe council in 2016 to address hate speech, harassment, child exploitation, suicide, selfharmandotherproblems on the platform. He has referred to himself as a free speechabsolutist-though the billionaire has at times proven sensitive about critical speech directed at himor his companies. Last year, he suspended the accounts of several journalists who covered his takeover ofTwitter. The bill's author, Democratic Assemblyman Jesse Gabriel, said it is a a pure transparency measure that simply requires companies to be upfront about if and how they are moderating content. It in no way requires any specific content moderation policies - which is why it passed with strong, bipartisan support. If Twitter has nothing to hide, then they should have no objection to this bill, he added. The attorney general's office said it will review the complaint and respond in court. Representatives forXdid not immediately respond to messages for comment on Friday. Ortutay writes for The Associated Press.

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